

25STCV20125 25STCV20125

County: los-angeles

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Case Number: 25STCV20125 Hearing Date: September 11, 2026 Dept: 406

DAVID CORRIEA, et al.,

Plaintiffs,

v.

GENERAL MOTORS, LLC,

Defendant.

Case No.: 25STCV20125

Hearing Date: September 11, 2026

[TENTATIVE]

order RE:

defendant's motion to compel deposition

BACKGROUND

On June 30, 2025, Plaintiffs David

Corriea and Diana Corriea filed this action against Defendant General Motors, LLC for violations of the Song-Beverly Act, breach of warranty, and fraudulent concealment. Plaintiffs filed the operative First Amended Complaint on October 21, 2025.

On August 7, 2026, Defendant filed

the instant motion to compel Plaintiffs' depositions. Plaintiffs filed an opposition on August 28, 2026. Defendant filed a reply on September 3, 2026.

LEGAL STANDARD

Code of Civil Procedure sections 871.20 to 871.30 set forth specific rules applying to actions for restitution or replacement of motor vehicles under the Song-Beverly Act. With regards to discovery, the Code provides that "[w]ithin 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions." (Code Civ. Proc., § 871.26(c).) The statute additionally sets forth a schedule of sanctions which "shall" be imposed "[u]nless the party failing to comply with this section shows good cause." (Id., § 871.26(j).)

DISCUSSION

Here, Defendant filed its responsive pleading—a demurrer—on October 9, 2025. Thus, Defendant was entitled to depose Plaintiffs by February 6, 2026. Defendant served a meet-and-confer letter along with its demurrer in an attempt to obtain Plaintiffs' availability for deposition. (Stark Decl. ¶ 4.) However, to date, Defendant has been unable to ascertain Plaintiffs' availability, and Plaintiffs have not indicated their availability. (Id., ¶¶ 6-8.) Defendant's counsel wrote to and called Plaintiffs' counsel, to no avail. (Ibid.)

Plaintiffs argue that they have never refused to be deposed and merely objected to Defendant's unilaterally noticed date. However, Plaintiffs do not dispute ignoring Defendant's repeated communications seeking their availability. Plaintiffs point out that they have been conferring on dates since August 28, 2026, after this motion was filed. (Smith Decl. ¶ 11.) This is nearly a year after Defendant sent its initial communication seeking Plaintiffs' availability. The motion was clearly necessary to compel Plaintiffs' compliance.

Sanctions are also warranted, as Plaintiffs have not demonstrated good cause for their failure to appear for deposition within the statutory deadline. The personnel change that Plaintiffs' counsel went through in June 2026 (Smith Decl. ¶ 10) does not justify Plaintiffs' failure to provide their availability since October 2025. The

statute mandates a \$1,500 sanction against the plaintiff's attorney, paid within 15 business days, for violation of the deposition requirements. (Code Civ. Proc., § 871.26(j)(2).)

CONCLUSION

Defendant's motion to compel depositions is GRANTED. Plaintiff David Corriea shall appear for deposition on _____. Plaintiff Diana Corriea shall appear for deposition on _____.

The Court sanctions Plaintiffs' counsel in the amount of \$1,500, to be paid within 15 business days.